

District/Municipal Court of Washington, County/City of King

State of Washington/City of Seattle,
Plaintiff,

vs.

Jordan Lee Example 1991-04-17
Defendant DOB

No. SYNTH-19-1-001234-1

Blake Motion to Vacate Drug Possession
Conviction and Refund Paid LFOs Amounts

**Blake Motion to Vacate Drug Possession Conviction and
Refund Paid LFO Amounts**

1. This matter comes before the court on:

- ☒ Defendant's motion.
- ☐ State's motion.
- ☐ Motion of the Court, in the interest of justice.

2. Motion and Relief Requested:

The movant requests the court vacate unconstitutionally void *Blake* conviction/s and order a refund of legal financial obligations (LFOs) paid on the unconstitutional conviction/s, as well as waive any balance remaining on LFOs resulting from the unconstitutional conviction/s. The movant further requests the court revoke or remove any such LFO assigned to a private collection agency, and stop any collection action resulting solely from the void convictions. This motion is based on *State v. Blake*, 197 Wn.2d 170, 481 P.3d 521 (2021), *State v. A.L.R.H.*, 20 Wn. App. 2d 384, 500 P.3d 188 (2021), *Nelson v. Colorado*, 581 U.S. 128, 137 S. Ct. 1249 (2017), CrR 7.8 (b)(4), GR 15(b)(8) and the case record and files.

In addition to a vacate of conviction/s, waiver of LFOs, and refund of paid LFOs, the movant requests this Court further:

- a) Update or vacate defendant's criminal record;
- b) Dismiss the information with prejudice as to the refiling of any charges alleged in the original or amended information or indictment in this case if no counts remain; if counts remain, dismiss the charge/s in the information, as originally filed or amended, with prejudice as to the counts/crimes vacated under *State v. Blake*;
- c) Release the defendant from all penalties and disabilities resulting from any conviction under this case and those offense/s shall not be included in the defendant's criminal history for purposes of determining a sentence in any subsequent conviction;
- d) Determine any remaining term of community custody, if applicable;
- e) Quash outstanding arrest warrants in this matter if there are no other convictions on the judgment and sentence;
- f) Notify the Department of Licensing to reinstate the defendant's privilege to drive, if the defendant was under 21 years old at the time of conviction and this *Blake* conviction was the sole basis for suspending the defendant's privilege to drive pursuant to RCW 69.50.420(2).
- g) Transmit notice of the vacate order to Washington State Patrol and local law enforcement agency to update their records to reflect the vacate;
- h) Order the Washington State Patrol to transmit notice of the vacate order to the Federal Bureau of Investigation;
- i) Forward a copy of the vacate order to the Department of Corrections;

3. Basis

a) Conviction:

The defendant's underlying conviction for simple drug possession was based on one or more of the following:

- a) RCW 69.50.4013(1), for convictions on or after July 1, 2004;
- b) RCW 69.50.4014, for convictions on or after July 1, 2004;

- c) RCW 69.50.401(c), for convictions between 1971 and March 20, 1979;
- d) RCW 69.50.401(d), for convictions between 1971 and June 30, 2004;
- e) RCW 69.50.401(e), for convictions between March 21, 1979, and June 30, 2004;
- f) An inchoate offense for one of the above statutes;
- g) A municipal ordinance that relied on the above statutes.

Additional information:

See attached conviction and payment-history schedule.

b) LFO refund:

A refund may be due. The Court should determine whether LFOs were paid on the unconstitutional conviction/s and calculate an LFO refund amount.

Attached is a true and correct copy of a printout of the Case Financial History Screen (CFHS) obtained from the Court. (Optional)

4. Reservation of Rights

Defendant reserves the right to bring a motion to seek additional or different relief from that requested here, including but not limited to a motion for resentencing or a motion for a refund for third-party costs associated with the unconstitutional conviction.

5. Hearing

Defendant understands Defendant may need to take further action to have this matter considered by a court.

If filed by Prosecuting Attorney, Defendant, or Defense Attorney:

Prosecuting Attorney WSBA No.

Defendant or Defense Attorney WSBA No.

Print Name

Jordan Lee Example
Print Name

Defendant's Mailing Address, if known:

412 Example Street

Seattle, WA 98101

Phone: 206-555-0142

Email: participant@example.test

Attach a copy of the LFO Accounting Summary (if available)